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Case Number: 25NWCV03974 Hearing Date: August 12, 2026 Dept: D

JONATHAN DOMINIC AGUILAR V.

STATE OF CALIFORNIA, ET AL.

CASE NO.: 25NWCV03974

HEARING: 08/12/2026 @ 9:30 a.m.

#15

TENTATIVE ORDER

Defendant City of South Gate's
demurrer SUSTAINED WITH LEAVE TO AMEND.

Plaintiff Jonathan Dominic
Aguilar shall file and serve a First Amended Complaint within 30 days of notice
of this ruling.

Moving party to give notice.

Defendant City of South Gate
(City) demurs to Plaintiff Jonathan Dominic Aguilar's (Plaintiff) Complaint.

Background

On November 6, 2025, Plaintiff
filed the operative Complaint against Defendants State of California, the
County of Los Angeles, the City, and Martha Hernandez Lopez, and Does 1 through

20, inclusive, asserting three causes of action: (1) Negligence; (2) Motor Vehicle Negligence; and (3) Dangerous Condition of Public Property.

On April 16, 2026, Plaintiff filed a request for dismissal as to Defendant County of Los Angeles. The Clerk entered the dismissal that day.

On July 13, 2026, the City filed the instant demurrer.

On August 5, 2026, Plaintiff filed an untimely opposition.

No reply has been filed.

Timeliness

Plaintiff's opposition was due on July 30, 2026, but was not filed until August 5, 2026. (Code Civ. Proc., § 1005(b) ["All papers opposing a motion so noticed shall be filed with the court and a copy served on each party at least nine court days".]) Accordingly, the opposition is untimely and the Court declines to consider the late-filed opposition in its tentative ruling.

Legal Standard

As a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. *¿* (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not the evidence or facts alleged." (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (Id.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v.

Kennedy (1976) 18 Cal.3d 335, 348.)

The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v.

YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.”

(Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

Plaintiff is only required to

allege ultimate facts, not evidentiary facts.

(See Committee on Children's Television, Inc. v. General Foods Corp. (1983)

35 Cal.3d 197, 212 [“the complaint should set forth the ultimate facts

constituting the cause of action, not the evidence by which plaintiff proposes

to prove those facts”]; 1 Cal. Affirmative Def. § 10:2 (2d ed.) [allegations of

agency, course and scope of employment, etc. qualify as ultimate facts].) Plaintiff’s allegations must be accepted as true on demurrer. (See Yvanova v. New

Century Mortgage Corp. (2016) 62 Cal.4th 919, 924 [“For purposes of

reviewing a demurrer, we accept the truth of material facts properly pleaded in the operative complaint”].)

Meet and Confer

Code of Civil Procedure section

430.41, subdivision (a) requires the moving party to meet and confer “in

person, by video conference, or by telephone” in an attempt to resolve a

demurrer’s deficiencies five days before the responsive pleading is due. (Code Civ. Proc. § 430.41(a)(2).)

The Court finds that the City has

fulfilled the meet and confer requirement.

(Cox. Decl., ¶¶ 4-7, Exs. B-D.)

Analysis

First

Cause of Action: General Negligence

The City demurs to Plaintiff’s

first cause of action for General Negligence on the grounds that it fails as a matter of law. Specifically, the

Complaint fails to plead the requisite authorizing statute is otherwise barred by authority that makes Government Code section 835 the exclusive statutory basis for liability arising from an alleged condition of public property.

A public entity is not liable for an injury unless that liability is provided for by statute. (Gov. Code, § 815, subd. (a).) Further, “[e]xcept as otherwise provided by statute, a public employee is not liable for an injury resulting from his act or omission where the act or omission was the result of the exercise of the discretion vested in him, whether or not such discretion be abused.” (Gov. Code, § 820.2.)

“In other words, direct tort liability of public entities must be based on a specific statute declaring them to be liable, or at least creating some specific duty of care, and not on the general tort provisions Otherwise, the general rule of immunity for public entities would be largely eroded by the routine application of general tort principles. [Citations].” (Eastburn v. Regional Fire Protection Authority (2003) 31 Cal.4th 1175, 1183 (Eastburn).)

“[T]o state a cause of action every fact essential to the existence of statutory liability must be pleaded with particularity, including the existence of a statutory duty. [Citation.]” (Searcy v. Hemet Unified School Dist. (1986) 177 Cal.App.3d 792, 802.) “Since the duty of a governmental agency can only be created by statute or ‘enactment,’ the statute or ‘enactment’ claimed to establish the duty must at the very least be identified.” (Ibid.)

Here, the Complaint fails to allege a violation of any specific statute declaring that the City, a public entity, is liable as to the General Negligence cause of action. (See Eastburn, supra, 31 Cal.4th at 1183.)

Accordingly, the demurrer as to first cause of action is SUSTAINED.

Third Cause
of Action - Dangerous Condition of Public Property

The City demurs to the third cause of action for Dangerous Condition of Public Property on the ground that

it fails to state facts sufficient to constitute a cause of action against the City. Specifically, the City argues that Plaintiff fails to sufficiently allege the existence of a dangerous condition and facts establishing either creation of the condition by a City employee or actual or constructive notice under Government Code sections 835 and 835.2. The Court agrees.

“A public entity is liable for injury caused by a dangerous condition of its property if (1) the property was in a dangerous condition at the time of the injury; (2) the dangerous condition proximately caused the injury; (3) the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred; and (4) (a) a negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the condition or (b) the public entity had actual or constructive notice of the dangerous condition in time to have taken measures to protect against it. (Zuniga v. Housing Authority (1995) 41 Cal.App.4th 82, 92–93.)

“The exclusive statutory basis for holding a public entity liable for injuries caused by a dangerous condition of its property is set forth in Government Code section 835.” (Zelig v. County of Los Angeles (2002) 27 Cal.4th 1112, 1132 (Zelig).) Section 835 provides that a public entity may be liable where the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the dangerous condition proximately caused the injury, that the condition created a reasonably foreseeable risk of the kind of injury incurred, and either that a negligent or wrongful act or omission of a public employee created the dangerous condition or that the public entity had actual or constructive notice of the condition in sufficient time to have protected against it. (Gov. Code, § 835.)

Dangerous
Condition

Plaintiff alleges that the subject intersection contained “malfunctioning traffic lights,” which were “defective, non-operational, or improperly flashing” and failed to provide proper traffic direction or right-of-way indication. (Complaint pp. 5, 8.) However, the Complaint inconsistently identifies the location of the allegedly defective signal. Plaintiff alleges that the collision occurred at Tweedy Boulevard and Truba Avenue, but elsewhere alleges that the City

negligently maintained and repaired a faulty traffic light at San Pedro Street and Martin Luther King Jr. Boulevard. (Id. at p. 5.) Thus, it is unclear which traffic signal Plaintiff contends constituted the dangerous condition that caused his injuries.

Creation
of the Dangerous Condition

Plaintiff also fails to allege sufficient facts showing that a negligent or wrongful act or omission of a City employee created the allegedly dangerous condition. Plaintiff alleges that the City “created” the dangerous condition by failing to properly inspect, maintain, and repair the subject traffic lights. (Complaint p. 8.) However, Plaintiff does not allege facts explaining how any act or omission by a City employee created the malfunction in the traffic signal. Rather, the allegations concern the City’s purported failure to discover or remedy an already-existing condition.

Actual
or Constructive Notice

Plaintiff likewise fails to sufficiently allege actual or constructive notice.

Under California Government Code section 835.2(a), a public entity has actual notice of a dangerous condition only if it had “actual knowledge of the existence of the condition and knew or should have known of its dangerous character”. Courts have consistently held that to establish actual notice, “there must be some evidence that the employees had knowledge of the particular dangerous condition in question”; it is insufficient to show that public entity employees “had a general knowledge” that a condition can sometimes occur. (Martinez v. City of Beverly Hills, (2021) 71 Cal.App.5th 508, 513.)

Here, Plaintiff alleges generally that Defendants “knew” the traffic lights were malfunctioning, that there was “a history of prior incidents,” and that the lights had previously been repaired, altered, and inspected. (Complaint p. 8.) However, Plaintiff does not

allege the nature or timing of the prior incidents, when or how the City became aware of the alleged malfunction, or other facts showing that the City had actual knowledge of the particular dangerous condition.

Nor does Plaintiff sufficiently allege constructive notice. Plaintiff does not allege when the traffic signal began malfunctioning, how long the condition existed before the collision, or facts showing that the condition existed for a sufficient period and was sufficiently obvious that the City, in the exercise of due care, should have discovered the condition and its dangerous character. (Gov. Code, § 835.2, subd. (b).)

The Court finds that the Complaint does not allege facts sufficient to constitute a dangerous condition of public property against the City.

Accordingly, the demurrer as to third cause of action is SUSTAINED.

Leave to Amend

Where the defect raised by a motion to strike or by demurrer is reasonably capable of cure, leave to amend is routinely and liberally granted to give the plaintiff a chance to cure the defect in question. (Velez v. Smith (2006) 142 Cal.App.4th 1154, 1174; see also McKenney v. Purepac Pharmaceutical Co. (2008) 167 Cal.App.4th 72, 78.) The burden of demonstrating a reasonable possibility that the defect can be cured by amendment "is squarely on the plaintiff." (Id.; see also Goodman v. Kennedy (1976) 18 Cal.3d 335, 349 ["Plaintiff must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading."])

Although the Court declined to consider Plaintiff's opposition, and Plaintiff therefore did not demonstrate how the pleading defects could be cured by amendment, the Court finds a reasonable possibility that the defects can be cured.

Accordingly, the Court GRANTS
LEAVE TO AMEND as to the first and third causes of action.

Conclusion

Based on the foregoing, Defendant
City of South Gate's demurrer SUSTAINED WITH LEAVE TO AMEND.

Plaintiff Jonathan Dominic
Aguilar shall file and serve a First Amended Complaint within 30 days of notice
of this ruling.